

Shani Yadav v. U.P. Power Corporation Limited and Another

High Court of Judicature at Allahabad · Division Bench · 7 December 2023 · 2023:AHC:232166-DB · Writ - C No. 32930 of 2023 · **Writ dismissed as settled under government scheme**

HEADNOTE

Writ dismissed. On counsel's statement that the petitioner had settled under the Government Order dated 4 November 2023, the Court held that no further order was required. Compliance with Clause 8.1 of the U.P. Electricity Supply Code, 2005 and the assessment of Rs. 9,19,826 were not decided.

FACTUAL SUMMARY

Shani Yadav filed a writ against U.P. Power Corporation Limited and another over an order dated 11 August 2023 for Rs. 9,19,826, saying Clause 8.1 of the U.P. Electricity Supply Code, 2005 had not been followed. On 7 November 2023 the Court directed the Executive Engineer to explain that calculation on affidavit and restrained coercive action until the next date. On 7 December 2023 counsel for the department stated that the petitioner had settled the dispute under a Government scheme dated 4 November 2023.

HOLDING-UNITS

HOLDING-UNIT · OFFTOPIC::procedural-listing

dismissal on settlement without code construction

HOLDING

Counsel for the Electricity Department stated that the petitioner had settled the matter under the scheme in the Government Order dated 4 November 2023. The Court held that no further order was required and dismissed the writ, without construing Clause 8.1 of the U.P. Electricity Supply Code, 2005 or examining the sum of Rs. 9,19,826. ¶ 1-3

PRINCIPLE TAGS

procedural-listing-no-construction

The petition ended on the department's statement of settlement under the Government Order dated 4 November 2023. Clause 8.1 was only the petitioner's contention at the earlier listing and was not construed. ¶ 1-3

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE ORDER DATED 11 AUGUST 2023 COMPLIED WITH CLAUSE 8.1 OF THE U.P. ELECTRICITY SUPPLY CODE, 2005, AND HOW RS. 9,19,826 WAS CALCULATED

Not examined once counsel stated that the petitioner had settled under the Government Order dated 4 November 2023. ¶ 1-3